

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (the "**Agreement**") is entered into as of **January 1, 2024** (the "**Effective Date**") by and between:

Acme Corp, a Delaware corporation ("**Disclosing Party**"), and **Example LLC**, a Delaware limited liability company ("**Receiving Party**").

1. Purpose

The parties wish to explore a potential business relationship (the "**Purpose**") and may disclose confidential information to each other in connection with the Purpose.

2. Confidential Information

"Confidential Information" means any information disclosed by one party to the other that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure.

3. Confidentiality Obligations

The Receiving Party agrees to hold all Confidential Information in strict confidence for a period of **five (5) years** following the termination of this Agreement. The Receiving Party shall not disclose Confidential Information to any third party without the prior written consent of the Disclosing Party.

4. Termination

Either party may terminate this Agreement by providing **thirty (30) days** prior written notice to the other party. The confidentiality obligations in Section 3 shall survive termination of this Agreement for the period stated therein.

5. Non-Competition

During the term of this Agreement and for a period of **two (2) years** following termination, the Receiving Party shall not, directly or indirectly, compete with the Disclosing Party's business operations in any market in which the Disclosing Party operates as of the Effective Date.

6. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the **State of Delaware**, without regard to its conflict of law provisions.

7. Entire Agreement

This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior agreements and understandings.

ACME CORP

By: _____

Name: John Smith

Title: CEO

Date: January 1, 2024

EXAMPLE LLC

By: _____

Name: Jane Doe

Title: Managing Member

Date: January 1, 2024